

**FIRST AMENDMENT
TO CITY CONTRACT 7119
MEMORANDUM OF UNDERSTANDING BETWEEN
THE CITY OF CHEYENNE AND WJE, LLC**

1. Parties. This First Amendment to the Memorandum of Understanding (the "Amendment") is made and entered into by and between WJE, LLC ("Developer"), 506 Shoshoni Street, Cheyenne, Wyoming, 82009, and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming ("City"), 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001.
2. Purpose. The purpose of this Amendment is to extend the time for performance of the party's respective obligations described in the Memorandum of Understanding due to mutual delays relating to Covid 19.
3. Recitals.
 - a. Saddle Ridge and the City entered into a Memorandum of Understanding, also known as City Contract number 7119, with an effective date of January 24, 2020 (the "MOU").
 - b. The MOU outlined each party's responsibilities for certain open space improvements related to the construction of the Saddle Ridge Subdivision, 8th-13th Filings. The MOU states that it shall not extend past December 31, 2021.
4. Amendment. For good and valuable consideration, the receipt of which is hereby acknowledged, pursuant to paragraph 7(a) of the MOU, the parties hereby amend paragraph 3 of the MOU and extend the term of the MOU to December 31, 2022.
5. No Other Amendments. Except as set forth in this Amendment, the MOU shall remain unaffected and shall continue in full force and effect in accordance with its terms. If there is conflict between this Amendment and the MOU, the terms of this MOU shall prevail.
6. Signatures. In witness whereof, the parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Amendment as set forth herein.

The effective date of this Amendment is the date of the signature last affixed to this page.

(signature page follows)

WJE, LLC

Date

By: _____
John Edwards, Manager

CITY OF CHEYENNE, WYOMING

Date

By: _____
Patrick Collins, Mayor

(SEAL)
ATTEST:

Kristina F. Jones, City Clerk